

Prem Singh v. Chief Managing Director, U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 1 February 2019 · WRIT - C No. 2376 of 2019 · **Writ disposed; relegated to clause 6.5; citation stayed pending EE.**

HEADNOTE

A consumer disputing the bill behind a recovery citation was relegated to the objection before the Executive Engineer under para 6.5 of the Electricity Supply Code, 2005. The writ was disposed with a direction to decide the representation in accordance with law if presented by the date fixed, and the citation was kept in abeyance pending that decision.

FACTUAL SUMMARY

Prem Singh petitioned the Allahabad High Court to quash a demand notice dated 1 August 2018 issued by U.P. Power Corporation / Dakshinanchal Vidyut Vitran Nigam Ltd., Mainpuri. On 24 January 2019 the Division Bench noted he had not challenged a recovery citation dated 15 September 2018 and allowed a week to amend. After amendment on 1 February 2019, he sought quashing of a recovery of Rs.95,657/-, described in that order as a citation dated 1 August 2018, and disputed the underlying bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

Where the consumer disputes the bill underlying a recovery citation, the High Court will not decide the bill on merits and will relegate him to the objection before the Executive Engineer under para 6.5 of the Electricity Supply Code, 2005. If he presents the representation with a certified copy of the order by the date and time fixed, the Executive Engineer shall consider and decide it in accordance with law within the time allowed, and subject to that compliance the impugned citation remains in abeyance pending the Executive Engineer's final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILL AND RECOVERABILITY OF RS.95,657

Merits of the bill were left to the Executive Engineer under para 6.5. ¶ 1